

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 26, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:06 p.m. via electronic conference meeting. Attending electronic conference meeting were: COUNCIL PRESIDENT – Dr. Mark Rinne; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Scott Roybal, Dicky Shanor and Jeff White. Absent: Mayor Marian Orr. Also attending: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Mr. White and Mr. Luna, agenda items #14 & #21 (c) were removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 12, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on October 19, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending Chapter 5.04, Business Licenses Generally, amending Chapter 5.08, Business License Fees, and creating a new Chapter 5.77, Nicotine Product Sales, of Title 5, Business Licenses and Regulations; amending Chapter 8.64, Smoking in Public Places, of Title 8, Health and Safety; and amending Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming. Joe Chenchar, Assistant City Attorney, provided a staff report stating the ordinance will increase the legal age to purchase nicotine to 21 which aligns code with state and federal law. He provided the following information on the ordinance: application fee will remain the same, soft drink licensing requirement will be removed, regulatory provisions have been added giving the governing body the ability to suspend or revoke a license and the fines for violating city code have been increased. Brittany Wardle, Cheyenne Regional Medical Center, voiced support for the ordinance, reiterated that increasing the legal age to purchase nicotine to 21 aligns with state and federal laws, noted the ordinance provides for authority and enforcement for police officers, licensing prevents illegal sales and provides structure so businesses comply and advised the effects of nicotine use is the leading cause of preventable death in the United States. Mr. White moved to approve on third and final reading, seconded by Mr. Cook. Dr. Rinne relinquished duties of the Chair to Mr. Luna. Dr. Rinne advised the ordinance brings code into compliance with state and federal guidelines, allows for removal of license after four (4) offenses, and stated he believes the

finer should be onerous. He further commented on: businesses selling to minors, state and federal laws and nicotine being the most addictive drug contributing to disease and deaths. Dr. Rinne stated he does not see the proposed changes to be devastating to small businesses, noting most businesses selling nicotine are large corporations. Upon inquiry, Mr. Chenchar reported that if an alleged offender pleads not guilty, they will get a trial date and further advised in that case, he would represent the city and the officer issuing the citation would be the witness. Upon further inquiry, Mr. Chenchar advised Municipal Court minor infractions are being tried and prosecuted currently and that maybe some cases in higher courts are not currently being tried due to COVID-19. Mr. Chenchar further advised the fines would be the responsibility of the citation holder, noting the issuing officer would have discretion to issue to either the individual employee or business owner. Chief Brian Kozak, Police Department, advised it is his understanding that some low-level misdemeanor crimes are being dismissed at the Circuit Court level and that infractions relating to this ordinance will be at the municipal level. Concerns were raised relating to citing employees who may be financially struggling and local bar owners who have been damaged exponentially by COVID-19 by adding more financial burden. It was further noted the proposed increase in administrative fees are not required by state statute and would be an economic devastation when currently 1 in 5 businesses are closing down. Further comments were made in support of the ordinance amendments as businesses should be following the age requirement of 21 to purchase nicotine and that most businesses selling nicotine products are big box corporations not small businesses. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mr. Case, Mr. Luna, and Mr. Shanor voting "no".

ORDINANCE –2nd READING – Amending Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. (Postponed from October 12, 2020). Chief Brian Kozak, Police Department, reported the proposed amendment will provide for updating the current ordinance for the purpose of helping to prevent unnecessary damage to residential streets from heavy semi-truck traffic on smaller less traveled streets and will allow for enforcement. He advised the amendment would limit the weight load permissible on residential streets and that current language does not provide for these regulations, noting the heavy loads damage infrastructure and bridges and they require more time to stop. He provided the following information relating to the proposed substitute: change from complete prohibition of heavy truck travel to allow for trucks that have scheduled stops (semis can be on streets if they have a scheduled delivery), provides a Schedule H for load restrictions, applies to certain weights and noted delivery trucks such as Amazon won't be impacted. Chief Kozak reported he did not want to have a standard that was different than federal and state laws and explained companies that have a need to go over federal and state law weight limits can do so by obtaining a permit. He further noted that trucks that can drive on highways without a permit can also drive on city streets without a permit and that the city will allow overweight permits for divisible loads. It was noted the Police Department Traffic Unit will be trained in weight enforcement if the ordinance is approved and that cause must exist before a truck can be weighed. Upon inquiry, Chief Kozak explained he plans to purchase portable scales with drug cartel money. He advised current truck routes will be maintained as listed in Schedule I and the city will allow 117,000 pounds without a permit on truck routes which are designed for heavier loads. He reported a public meeting was held with the trucking industry last week and all of their recommendations have been included in the proposed substitute amendment. It was noted that one heavy load has the same impact as 9,000

cars, pavement is designed to last 20 years at the 80,000 lb. level and that heavy trucks can wear pavement out in 7 years. He reported the proposed permits will be introduced by resolution. Reporting for Public Services Committee, Mr. Case moved to approve on second reading, seconded by Mr. Roybal. Dr. Rinne relinquished Chair to Mr. White. Chief Kozak advised he emailed the proposed substitute to interested parties on Friday, October 23rd. He noted there were approximately 30 people from trucking industry who attended the meeting on Tuesday, October 20th with city staff and the primary area of concern was there were streets on Schedule H that they didn't want on the schedule and those have been removed. Chief Kozak reported he received feedback that permits are reasonable and contain every possible use and that the proposed fees are fair. He noted he has not received any feedback on the proposed substitute. Dr. Rinne moved to amend by substitute dated October 26, 2020, seconded by Mr. Case. Support was voiced for the substitute ordinance and comment was made that the primary concerns voiced at the meeting with the trucking industry were Deming Drive, Parsley Boulevard and Ames Ave. Anissa Gerard, Traffic Engineer, explained the streets with concern have been removed from Schedule H. Kris Jones, City Clerk, confirmed the ordinance is on second reading. Comments were made regarding importance of protecting city streets from damage and that the proposed substitute incorporates feedback from the trucking industry. Upon inquiry, Chief Kozak provided details relating to the proposed weight changes and advised those weights are consistent with state and federal requirements. Chief Kozak advised a resolution would be necessary to set permit fees and that the intent is for the revenue to go toward enforcement efforts from the Police Department. Discussion included concerns regarding equal enforcement for locals and out of state truckers and uncertainty regarding substance of proposed substitute. Motion to amend carried. Voting "yes" all members of the governing body present with the exception of Mr. Case and Mr. Cook voting "no". Comments were made that although effected parties were involved with the process, it is not the appropriate time to add more regulations, permitting fees, and fines on small businesses. Discussion included importance of protecting streets from unnecessary deterioration, open discussions held with the trucking industry and anticipated additional feedback on proposed substitute. Mr. Luna noted he received messages that industry members can't access tonight's Zoom meeting. Rick Fierro, Ram Trucking Inc., advised he and his colleagues were under the impression the ordinance wasn't going to be before the city council tonight. Mr. Laybourn moved to postpone to November 9, 2020, seconded by Mr. Cook. Katie Legerski, Executive Director for Wyoming Contractors Association, advised they have not had ample time to review the proposed substitute. Ms. Jones, as a point of clarification, provided the timeline moving forward should the ordinance be postponed as follows: ordinance to Public Services Committee on November 3rd and November 17th, and to the City Council meeting on November 9th with final approval on November 23rd. Motion to postpone carried. Voting "yes" – all members of the governing body present. Upon inquiry by Ms. Jones, it was clarified that Mr. Luna and Mr. White did vote while chairing items #7 and #8 and that Dr. Rinne would only vote if it would affect the outcome while chairing the remaining agenda items.

ORDINANCE –2nd READING – Amending Section 8.56.070, Loudspeakers, Sound Cars, and Sound Trucks, of Chapter 8.56, Noise Control, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming. Alessandra McCoy Fakelman, Deputy City Attorney, advised the purpose of the amendment is to change written permission for scenarios related to the ordinance from the mayor to the police chief and scenarios will require a permit in accordance

with Section 8.56.060 of city code. She reported a copy of the written permission shall be kept on file in the City Clerk's office outlining the parameters of the approval. She noted compliance is required with current noise provisions of city code. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Mr. Case, as sponsor, advised the purpose is to align the code with existing noise related city code requirements. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR (High-Density Residential) to CB (Community Business) for property generally located east of Interstate 25 and north of Central Avenue adjacent to Hynds Boulevard. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification of Lot 1, Block 2 and Lot 1, Block 3, Back 40 Subdivision Second Filing from MUB (Mixed-Use Business Emphasis) to CB (Community Business) for property generally located north of West Lincolnway at Grant Avenue. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Vacating the entirety of the Stinson Avenue right-of-way lying between Blocks 404 and 410, Original City, Cheyenne, Laramie County, Wyoming and south of West Lincolnway Highway. Mr. Case moved to approve on second reading, seconded by Mr. White. Mr. Case moved to amend by substitute map dated October 9, 2020, seconded by Mr. White. Motion to amend carried. Voting "yes" – all members of the governing body present. Main motion as amended carried. Voting "yes" – all members of the governing body present.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to define, establish permissibility, and create Specific Use Standards for the use 'Emergency Shelter'. Mr. Case moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present.

RESOLUTION – Authorizing the submittal of a request to the Wyoming State Loan and Investment Board to amend Drinking Water State Revolving Fund Loan #133 from \$4.9 million to \$7.4 million for the City of Cheyenne Hydroelectric Generation Facility Project and authorizing the Mayor, City Clerk, and the Director of the Board of Public Utilities to sign all loan documents. Mr. Shanor abstained. Mr. Luna moved to adopt, seconded by Mr. White. Clint Bassett, Water Treatment Manger (BOPU), reported BOPU is requesting the amendment to increase the loan amount with a 0% interest rate. Mr. Bassett provided information on the loan and project stating the funding is for design of the Hydroelectric Generation Facility Project which started in 2013 and feasibility and economic studies have been completed. Mr. Bassett explained the project went out to bid in May and the range of received bids were from \$5.3 million to \$7 million and they weren't able to fund the project and had to reject all bids. He advised some factors relating to the higher bids were a busy bidding time, labor shortage in the construction industry driving up construction prices and noted they have added components to the project. He further reported they

plan to rebid the project in December 2020 and they will be separating project components that can be completed at a later date. Mr. Bassett further explained the loan repayment will increase and the project will need to be supplemented by water revenue. Comments were made regarding the importance of the project, providing public awareness of such projects relating to the consent agenda process and wildfires and droughts involving the BOPU. Motion carried. Voting “yes” – all members of the governing body present. (#6097)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sweetgrass, 4th Filing, a replat of all of Block 1, (Lots 1 thru 8 inclusive), Sweetgrass, 3rd Filing, Cheyenne, Laramie County, Wyoming (located at the southeast corner of E. College Drive and Goodnight Trail). Motion (per Consent Agenda) carried. (#6098)

[CA] RESOLUTION – Adopting an amendment to the Future Land Use Map in Plan Cheyenne, the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County, amending the Land Use Category for property generally located east of Interstate 25 and north of Central Avenue adjacent to Hynds Boulevard from Public/Quasi-Public to Community Business. Motion (per Consent Agenda) carried. (#6099)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cole School Addition, a replat of all of Block 569 & 570, Original City of Cheyenne, including the 16’ alley rights-of-way of said blocks; and portions of adjacent rights-of-way (O’Neil Ave., W. 8th St., Thomes Ave., & Bent Ave.); and all of Block 2, Roberts Place, including the 16’ alley right-of-way, Cheyenne, Laramie County, Wyoming (located at the southeast corner of the intersection of Bent Avenue and W. 9th Street. Motion (per Consent Agenda) carried. (#6100)

[CA] RESOLUTION – Creating a Special District for the DDA “Boos & Booze” Halloween Pub Crawl to be held on October 31, 2020, in which the possession of open containers is permitted within the Downtown District Boundaries. Motion (per Consent Agenda) carried. (#6101)

[CA] Agreement to fulfill City Contract No. 6949 between the City of Cheyenne and Summit Engineering, LLC for providing design services for five Greenway segments and 35% design services for segment #6 (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried. (#6949)

Grant Award Agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Programs Directorate, State Homeland Security Program (SHSP), grant fiscal year 2017, in the amount of \$13,371.73 for the Cheyenne Regional Response Team No. 7 (DHS Grand Code: EMW-2017-SS-00067). Mr. Luna moved to approve, seconded by Mr. White. City Clerk Kris Jones explained this item was heard under other items at the October 19th Finance Committee meeting and meets provisions of Title 2 of city code. Upon inquiry, Chief Kozak reported the Cheyenne Regional Response Team No. 7 is with the Fire Department and is for regional hazmat response. Division Chief Byron Mathews, Fire and Rescue Department, advised the team is responsible for Laramie, Goshen and Platte Counties. Motion carried. Voting “yes” – all members of the governing body present. (#7249)

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne, Wyoming, and Cheyenne Regional Air Service Focus Team (CRAFT), for Skywest Airlines to provide scheduled flight services between Cheyenne, Wyoming and Denver, Colorado (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and Ayres Associates for the Converse Avenue Reconstruction Plan (MPO Federal Funds) – referred to Finance Committee.

[CA] Memorandum of Understanding between EQ Capital LLC and the City of Cheyenne to build a technology ecosystem in Wyoming focused on investing in tech startups – referred to Finance Committee.

[CA] Contract Modification #1 to Professional Services Agreement #7003 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and Kimley-Horn Associates, Inc., for the PlanCheyenne Update: 2019-2045 (MPO Federal Funding). Motion (per Consent Agenda) carried. (#7003)

[CA] Contract Modification #4 to Professional Services Agreement #6552 between the City of Cheyenne and HDR Engineering, Inc. for the Prairie Ave. & Frontier Mall Dr. Intersection Improvements Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$23,618.02). (#6552)

[CA] Contract Modification #1 to Contract #7207 with Front Range Roofing Systems, LLC, for the roof replacement for Parks Shop and Fleet Maintenance (General Fund-Capitol Improvement Project). Motion (per Consent Agenda) carried (in an amount not to exceed \$1,890.00) (#7207)

[CA] Contract Modification #2 to Contract #7195 between the City of Cheyenne and Simon Contractors for cost impacts associated with changes in site conditions, Force Account increases, and changes to retainage on the Prairie Avenue and Frontier Mall Drive Intersection Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-4-21 for furnishing ten (10) portable litter fences for the City of Cheyenne Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Metta Technologies, Toledo, OH, in an amount not to exceed \$46,890.00).

[CA] Consideration of Bid #E-6-21 for furnishing one (1) new 16' wide area mower for the City for Cheyenne Parks Division (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from L.L. Johnson Distributing Company, Denver, CO, in an amount not to exceed \$100,454.41).

Consideration of Bid #E-2-21 for furnishing one (1) new 2020-2021 patch truck for the City of Cheyenne Street and Alley Department (2015-2018 1% Sales Tax). Jeff Brown, Floyd's Truck Center, advised they submitted 1 bid with 2 different body companies which met 100% of

the required specifications. Mr. Brown shared past frustrations experienced with the city's bidding process. Mr. Luna moved to accept bid from Floyd's Truck Center, Cheyenne, in an amount not to exceed \$207,063.00, seconded by Mr. White. Upon inquiry, Craig LaVoy, Deputy Director of Public Works, advised they received 3 bids and that the low bidder was Floyd's Truck Center and that staff recommends approval. Mr. LaVoy reported the truck would serve as an additional patch truck for repairing city streets which will hopefully allow the department to accomplish twice the number of repairs. Discussion included: importance of maintaining the city's road system, inquiries as how to fund additional staff members to perform repairs and efforts of the Public Works Department to provide adequate maintenance. Upon inquiry, Mr. LaVoy advised he would be providing members of the governing body a plan for adding staff for a second patch crew. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Consideration of Bid #E-7-21 for Ice Control Product for the City of Cheyenne Street & Alley Division (2015-2018 & 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-3-21 for a contract between the City of Cheyenne and Simon Contractors for the East 12th Street and Meadow Drive Mill and Overlay project (2015-2018 & 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-6-21 for a contract between the City of Cheyenne and Dan Hart Patrol Service, LLC, for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks (Earthworks Base Bid) Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-6-21 for a Contract between the City of Cheyenne and Clean Air and Water Systems, LLC, for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks (Geosynthetics Installation Base Bid) project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-6-21 for a contract between the City of Cheyenne and Northwest Linings & Geotextile Products, Inc., for the Happy Jack Landfill Phase 2, Cells 1 and 2 and Cell 3 Excavation Earthworks (Geosynthetics Procurement Base Bid) project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-10-21 for furnishing monitors, 2-in-1 computers and accessories for the City of Cheyenne, Cheyenne Police Department (Coronavirus Emergency Supplemental Funding, Bureau of Justice Assistance (CESF)) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Under other business:

Brenda Roper commented on and requested clarification on why Felix Pino's name was removed from the sign at transfer station. She advised that she spoke with Vicki Nemecek, Public Works Director, who explained the sign would be replaced. Ms. Roper further requested Felix Pino's name be added to the new sign. Comments were made by Council members who stated they had received calls on the issue and that the sign will be replaced with a new sign. It was noted the community supports Mr. Pino's name on the sign and it was clarified the new sign will have the city logo and identifies the building as the Transfer Station. It was further noted "Felix Pino Transfer Station" is on the building. Craig LaVoy, Deputy Director of Public Works, reported there was a loss of communication and the sign was removed as it was hard to see, and the sign will be replaced and will contain Felix Pino's name.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:48 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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